

CONSTITUTION AND BY-LAWS OF AABAHON

PREAMBLE

Aabahon is a non-profit organization dedicated to the promotion of the rich religious and cultural heritage of India with an emphasis on Bengali language and traditions from the Indian subcontinent. We aim to propagate and preserve the rich religious and cultural tradition of India for the future generation of Indians in State College, PA.

ARTICLE I – NAME

The name of the organization will be Aabahon.

ARTICLE II – PURPOSE

The main objectives of Aabahon are:

- 1.0 To advance religious, cultural, educational, and social activities that are consistent with Indian culture, especially related to the people of Bengali origin.
- 2.0 To promote cross-cultural interactions and enhance unity and appreciation of diverse cultures.
- 3.0 To foster good citizenship among members by instilling traditional Indian values and their relevance to present-day society.
- 4.0 To facilitate understanding of Indian culture, philosophy, art, and religion among the people in the area.
- 5.0 To inspire understanding and inculcate respect among members of all religious, ethnic, and cultural groups.
- 6.0 To participate in various social welfare activities for the benefit of the community.
- 7.0 To promote the participation of youth in the activities of Aabahon for the continuation of rich Indian culture, philosophy, arts, and traditions.

ARTICLE III – NON-DISCRIMINATION

Aabahon organization welcomes everyone. No person will be discriminated against based on religious, cultural, educational background or race, color, ethnicity, sex, religion, national origin, ancestry, age, gender identity, disability, marital or familial status, sexual orientation, genetics, status as a protected veteran, or any other legally protected group.

ARTICLE IV – MEMBERSHIP & PRIVILEGES

Any person, **who is over the age of 18** and is interested in Bengali language and Indian cultural heritage, may become a member of Aabahon, based on the membership tiers mentioned below. Membership shall

be valid for the current calendar year and will be subject to subsequent renewals. The members shall uphold the constitution and by-laws of Aabahon. The following categories of members shall constitute the General Body of Aabahon.

1.0 Membership Categories

1.1 Family Membership: A family membership shall include both legal partners, dependent children (unmarried, and under 25), and dependent relatives (residing in the USA for more than 180 days in a calendar year). This definition of “dependent children” and “dependent relatives” is considered for the rest of the document.

1.2 Individual Membership: Any person who is 18 years or older. Any person not covered under 1.1, 1.3, 1.4, and 1.5 can opt for an Individual Membership.

1.3 Postdoctoral Membership: This is for individuals or families where the highest earning member of the household is a postdoctoral scholar/fellow. For families, the Postdoctoral membership dues amount needs to be paid by each legal partner separately. No membership dues are required for dependent children and dependent relatives, while they can still be members.

1.4 Regular Student Membership: This is for individuals or families where the highest earning member of the household is a full-time student (undergrad, grad – masters/PhD). For families, the Regular student membership dues amount needs to be paid by each legal partner separately. No membership dues are required for dependent children and dependent relatives, while they can still be members.

1.5 Complimentary Student Membership: This is a complimentary membership taken on an individual level, exclusively for students (defined in 1.4 above), and for those who do not intend to be a part of paid membership tiers 1.1-1.4.

2.0 Membership Dues

2.1 Members of the categories 1.1-1.4 mentioned above shall pay dues as fixed by the Executive Committee for every calendar year. The membership for category 1.5 shall be free of cost.

2.2 The period of annual membership shall be from January 1 to December 31 of the year (calendar year).

2.3 Any member who does not pay dues within the due date for the year, will find the membership status lapsed for the year. Upon payment of dues, the year’s membership status will be restored within 30 (thirty) days from the date of such payment.

2.4 Membership dues once paid shall not be refunded.

3.0 Membership Privileges:

3.1 A member in good standing shall be entitled to receive all membership emails/mails, notifications, publications (if any), exercise vote (based on voting rights mentioned in this document), and participate in all general organizational activities.

3.2 The Executive Committee may provide incentives to the regular student (category 1.4) and/or postdoctoral (category 1.3) membership categories for a wider membership outreach, through discounts on admission charges of Aabahon-organized activities that are non-profit in nature.

3.3 Dependent children and dependent relatives will have the same privileges as the primary members, except for voting rights.

4.0 Voting Rights:

4.1 Members from categories 1.1 - 1.4 (except category 1.5) are eligible to vote. For families, each legal partner shall have one vote.

4.2 Dependent children and dependent relatives do not have any voting privileges.

5.0 Forced Termination of Membership:

At least two-thirds votes from the total general body membership count of voting members can terminate the membership of any member whose activities are either improper, detrimental, subversive to the mission of Aabahon or which amount to gross violation of the constitution and by-laws. This can be done at a duly convened General Body Meeting.

ARTICLE V – EXECUTIVE COMMITTEE

The executive committee shall be comprised of 10 officers as mentioned below.

1.0 Officers

1.1 President

1.2 Vice President

1.3 Secretary and Joint Secretary

1.4 Treasurer and Joint Treasurer

1.5 Cultural in-charge and Joint Cultural in-charge

1.6 Food & Logistics in-charge and Joint Food & Logistics in-charge

2.0 Powers and Responsibilities

2.1 Article VI describes the roles and responsibilities of each officer in detail.

2.2 Prior to assuming office, all Executive Committee members are required to read and agree to abide by the by-laws of Aabahon.

2.3 Additionally, the executive committee with approval from the president is empowered to form other sub-committees under its leadership, from the pool of members as and when required on-demand, for carrying out different tasks and activities (administrative or non-administrative), in accordance with the goals and purpose of Aabahon.

3.0 Eligibility of Executive Committee Members

3.1 The candidates for President, Vice President, Secretary, Treasurer, Cultural in-charge, and Food & Logistics in-charge shall be from members of categories 1.1-1.2 of Article IV.

3.2 The candidates for Joint Secretary, Joint Treasurer, Joint Cultural in-charge, and Joint Food & Logistics in-charge shall be from members of categories 1.3-1.5 of Article IV.

3.3 The candidate must have been a member in good standing for at least 1 year for election/selection to office.

3.4 The candidate must be a resident of Pennsylvania, residing within 60 miles of State College Municipal Building, 243 S Allen Street, State College, PA 16801.

3.5 Once elected to office, a non-paid member of membership category 1.5 of Article IV will need to become a paid member with voting rights in any of the membership categories 1.1-1.4 of Article IV.

3.4 No member can hold more than one position in the committee at a time.

3.5 In the event of a vacancy arising in the Executive Committee, the committee shall nominate any eligible member of Aabahon to fill that vacancy for the remainder of the term.

4.0 Terms of Office

4.1 The term of office shall be for 1 year.

4.2 The term of office shall begin on the 1st of January and end on the 31st of December each year.

4.3 No officer shall be a part of the Executive Committee (for any of the ten officer positions) for more than 3 consecutive terms. The candidate needs to go through a mandatory cool-off period for one year before re-election or re-selection to the Executive Committee again.

5.0 Election/Selection to Office

5.1 Eligible members (explained in 3.0) can either nominate themselves or be nominated by other members for the office of President, Vice President, Secretary, Joint Secretary, Treasurer, and Joint Treasurer.

5.2 The positions of President, Vice President, Secretary, Joint Secretary, Treasurer, and Joint Treasurer shall be filled up by an **election** from the eligible nominated candidates, voted by the voting members of Aabahon.

5.3 Election will be held at the Annual General Meeting every year.

5.4 Election to office shall be by procuring maximum votes among all nominated candidates for the respective position. In the event of receiving only one nomination for an elected position, the candidate wins unopposed.

5.5 The president shall **select** eligible members for the positions of Cultural in-charge and Food & Logistics in-charge from the pool of members.

5.6 The Joint Secretary and Joint Treasurer together with consensus shall **select** eligible members for the positions of Joint Cultural in-charge and Joint Food & Logistics in-charge from the pool of members.

5.7 If there are no nominations, the Advisory Council (defined later) is authorized to select eligible members to fill the vacancy.

ARTICLE VI – DUTIES OF OFFICERS

1.0 President

- 1.1 Shall preside over all meetings of the General Body and of the Executive Committee.
- 1.2 Shall coordinate activities of other executive committee members to further the objectives of the organization.
- 1.3 Shall sign all contracts and other legal documents that are approved by General Body.
- 1.4 Shall have veto power or veto vote in case of a tie in opinions.
- 1.5 Shall have the privilege to sign checks as approved by the Executive Committee in absence of the treasurer or joint treasurer.
- 1.6 Shall act as a delegate to represent Aabahon in inter-organizational matters and shall keep other Executive members informed on these matters.

2.0 Vice President

- 2.1 Shall be familiar with all duties of the President and shall work closely with the President.
- 2.2 Shall perform President's duty in the absence of President.
- 2.3 Shall carry out the President's responsibility in the event the President is unable or unwilling to serve.
- 2.4 Shall have the privilege to sign checks as approved by the Executive Committee in the absence of the President.

3.0 Secretary and Joint Secretary

- 3.1 Both shall have equal rights and responsibilities and shall work cordially.
- 3.2 Shall be responsible for convening all meetings of the general body and the Executive Committee. In absence of the Secretary/Joint Secretary, the President shall convene such meetings.
- 3.3 Shall record the minutes of all meetings of the general body and the Executive Committee. Also, shall maintain permanent records of these minutes in good order for reference at a later date.
- 3.4 Shall be responsible for all correspondence and non-financial record keeping.
- 3.5 Shall notify all the members of meetings in time.
- 3.6 Shall keep a record of names, addresses, and other required information for all categories of members.

4.0 Treasurer and Joint Treasurer

- 4.1 Both shall have equal rights and responsibilities and shall work cordially.
- 4.2 Shall serve as custodian of all funds of Aabahon as well as bank accounts and financial records.
- 4.2 Shall be responsible for billings and collection of dues and donations.
- 4.3 Shall keep monetary records of all funds for Aabahon events and bank deposits as approved by the Executive Committee.
- 4.4 Shall maintain a complete and accurate financial record.
- 4.5 Shall present a full financial report at the annual general body meeting.
- 4.6 Shall arrange an audit of the accounts by auditors as approved by the Advisory Council member.
- 4.7 Shall fulfill the requirement of the Internal Revenue Service of USA such as duly filing taxes and taking care of tax-exempt status for Aabahon.
- 4.8 Shall have authority to sign checks (or transactions) of up to \$200.
- 4.9 Shall be required to notify the Executive Committee for any check (or transaction) over \$200.

5.0 Cultural in-charge and Joint Cultural in-charge

- 5.1 Both shall have equal rights and responsibilities and shall work cordially.
- 5.2 Shall be primarily responsible for organizing all cultural activities under the flagship of Aabahon.
- 5.3 Specific responsibilities may be communicated to the officers by the president and other Executive Committee members from time-to-time.

6.0 Food & Logistics in-charge and Joint Food & Logistics in-charge

- 6.1 Both shall have equal rights and responsibilities and shall work cordially.
- 6.2 Shall be primarily responsible for maintaining and managing logistics related to food and other organizational activities organized under the flagship of Aabahon.
- 6.3 Specific responsibilities may be communicated to the officers by the president and other Executive Committee members from time-to-time.

7.0 Spending Limits

- 7.1 The Executive Committee is authorized to make a discretionary commitment to spending for purposes that are consistent with the value and objectives of Aabahon but may be of ad-hoc nature.

8.0 Other Responsibilities

- 8.1 The Executive Committee is empowered to add other roles and responsibilities that are consistent with the value and objectives of Aabahon, and needed to carry the organization forward

9.0 Removal from Office

An officer shall be removed from the office if any of the following occurs:

- 9.1 Fails to uphold the Constitution and by-laws.
- 9.2 Unable to fulfill or perform his/her designated duties.
- 9.3 Fails to attend three consecutive meetings. The genuineness of the situation may be reviewed by the Executive Committee on a case-by-case basis.
- 9.4 Moves out of the area defined in 3.4 of Article V (Can be removed from office without any vote)
- 9.5 Any member of the Executive Committee can be removed from office for the reasons described above (9.1-9.3) by a two-thirds vote of the total General Body membership count of voting members. This can be done at a duly convened General Body Meeting.

ARTICLE VII – MEETINGS

1.0 Annual General Meeting (AGM)

- 1.1 Shall be held annually, in November every year. The dates shall be communicated to all members of Aabahon by the secretary/joint secretary at least 20 days in advance.
- 1.2 Reports will be presented to the members especially covering the activities and expenses for the year. The membership details and count may also be shared with the general body.
- 1.3 Any other businesses that are relevant to the organization's missions and values shall be conducted.
- 1.4 Election for the officers for the next term will be conducted during the AGM. Only members with voting rights (explained earlier) will have the privilege to vote.

2.0 General Body Meeting (GBM)

- 2.1 Quarterly meetings of the general body of all members will be scheduled every quarter. The frequency of these meetings can be altered by the Executive Committee as and when required.

2.2 The dates of GBM shall be communicated to all members of Aabahon by the secretary/joint secretary at least 10 days in advance.

2.3 Any other businesses that are relevant to the organization's missions and values shall be conducted.

3.0 **Special Meeting (SM)**

3.1 Special Meetings can be conducted to discuss specific issues if required. The date and time can be determined and communicated by the eligible parties (described below) on a case-to-case basis.

3.2 These meetings may be called (i) by the Executive Committee, or (ii) by a petition signed by greater than one-third of the total membership of Aabahon.

4.0 **Quorum for AGM and GBM**

4.1 At least 50% of the total voting members if present in an AGM or GBM shall constitute a quorum necessary at any such meetings. A quorum is required for any business that is related to decisions based on voting exercise from eligible voting members. If a quorum is not reached within the meeting time, then another meeting shall be convened. If two such consecutive meetings get cancelled due to failure of reaching quorum, the members present in the third such meeting can conduct business as needed.

5.0 **Executive Committee Meeting**

5.1 Regular Executive Committee meetings will be held every three months at a convenient time. The President may cancel a meeting if there is no business to conduct. The Executive Committee has the right to change the frequency of such meetings as required.

5.2 A quorum for Executive Committee Meetings will be governed by the majority of officers in presence at such meetings (at least 6 out of 10 officers).

6.0 **Mode of Meetings and Notifications**

6.1 The meetings shall be organized generally for in-person attendance. The Executive Committee also has the right to organize these meetings in a virtual online environment, or a hybrid (in-person and virtual) mode if needed. The notices for such meetings conveying the date, time, location (in-person, virtual or hybrid), and other relevant information shall be notified to the members at a prior time as mentioned above. The notifications shall be made through electronic media such as email/text SMS/WhatsApp etc. or postal mail.

- 6.2 If any business requires decisions to be taken based on the voting exercise by the voting members of the Aabahon, the Executive Committee is required to organize an online voting framework, if such meetings are happening in a virtual online or hybrid environment.

ARTICLE VIII – RESERVE

- 1.0 Shall maintain the reserve funds of Aabahon by adding at least 5% of the annual revenue every year by the Executive Committee.

ARTICLE IX – AMENDMENTS

- 1.0 The by-laws may be amended by a two-thirds vote of the total voting members at a meeting of the General Body.
- 2.0 A third of the total voting members with written consent may petition the Executive Committee for an amendment.
- 3.0 The Executive Committee may initiate any amendments that are deemed necessary for the improvement of functioning Aabahon. Such a meeting may be called at least three weeks in advance notice.
- 4.0 All members should have an electronic copy of the proposed amendments at least 7 days prior to the meeting date.
- 5.0 All amendments must be recorded and incorporated into the By-Laws.

ARTICLE X – ADVISORY COUNCIL

- 1.0 The Advisory Council shall be a 3-member committee independent of the Executive Committee.
- 2.0 All 3 members of the council shall be from the voting member categories. No member from the current Executive committee shall be a part of the current Advisory Council.
- 3.0 The term of office of the Advisory Council is for 1 year. The term starts on the 1st of January every year and ends on the 31st of December that year.
- 4.0 The council shall consist of at least one member from the previous Executive Committees.
- 5.0 A member of the Advisory Council can continue for 3 consecutive terms and can be re-appointed after a mandatory one-year cool-off period.
- 6.0 The members of the Advisory Council for the next term shall be **selected** at the AGM by the voting members of the General Body of Aabahon, based on consensus and general wisdom.
- 7.0 The Advisory Council shall be neutral observers to oversee the transparency of financial transactions carried out by Aabahon. The Advisory Council should organize and oversee an annual meeting where the financial transactions are verified, and reserve funds are evaluated.
- 8.0 The Advisory Council can choose to advise the Executive Committee on suggestions of importance as and when required, which are consistent with the goals and objectives of Aabahon.
- 9.0 The Advisory Council shall manage, conduct and oversee the **elections** in the AGM to elect the officers for the next term of the Executive Committee. It shall also manage, conduct, and oversee the **selection** of officers for the next term of the Advisory Council.

- 10.0 The Advisory Council shall oversee other voting exercises conducted and organized by the Executive Committee for issues requiring votes by the General Body of members.
- 11.0 In the event of gross violations by the Executive Committee, the Advisory Council shall refer to Title 19 Pa. Code Ch. 41 for taking appropriate corrective actions and remedial measures, after obtaining a majority approval by signed petition of voting members of Aabahon.

ARTICLE XI – CHARITABLE ORGANIZATION – TAX EXEMPT STATUS

- 1.0 Aabahon is organized exclusively for charitable purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code.
- 2.0 The organization shall not carry on any other activities not permitted to be carried on (a) by a corporation exempt from federal income tax under section 501(c)(3) of the Internal Revenue Code, or the corresponding section of any future federal tax code, or (b) by a corporation, contributions to which are deductible under section 170(c)(2) of the Internal Revenue Code, or the corresponding section of any future federal tax code.
- 3.0 Upon dissolution and winding up of this Organization, after paying or adequately providing for the debts and obligations of the organization, the remaining assets shall be distributed to a non-profit fund, foundation or corporation organized and operated exclusively for the purposes specified in Section 501(c)(3) of the Internal Revenue Code and which has established its tax-exempt status under that section.
- 4.0 Any assets not disposed of shall be disposed of by a Court of Competent Jurisdiction of the county in which the principal office of the corporation is then located, exclusively for non-profit purposes or to such organization or organizations, as said Court shall determine, which are organized and operated exclusively for the purposes specified in Section 501(c)(3) of the Internal Revenue Code.

ARTICLE XII – CONFLICT RESOLUTION

In an event of any conflict arising due to the interpretation and assessment of the above by-laws (from Articles I-IX), or otherwise, the rules and regulations governed by Title 19 Pa. Code Ch. 41, for the state of Pennsylvania, shall take precedence over these by-laws.